



SPONSOR: Rep. Ortega & Sen. Huxtable

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 161

AN ACT TO AMEND TITLE 24 OF THE DELAWARE CODE RELATING TO FUNERAL ESTABLISHMENT PERMITS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 3101, Title 24 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 3101. Definitions [For application of this section, see 84 Del. Laws, c. 261, § 16].

4 The following words, terms and phrases, when used in this chapter shall have the meanings ascribed to them under
5 this section, except where the context clearly indicates a different meaning:

6 (8) "Funeral establishment" means any place used in the care and preparation of human remains for funeral
7 service, burial, entombment, cremation, or natural organic reduction; ~~said place shall also include~~ including areas for
8 embalming, the convenience of the bereaved for viewing, and other services associated with human remains. A funeral
9 establishment ~~shall also include~~ includes a place or office in which the business matters associated with funeral
10 services are conducted. ~~Satellite funeral establishments existing as of May 12, 1988, shall not be required to include an~~
11 ~~area for embalming.~~

12 Section 2. Amend § 3117, Title 24 of the Delaware Code by making deletions as shown by strike through and
13 insertions as shown by underline as follows:

14 § 3117. Funeral establishment permit; circumstances for termination and continuation.

15 (b) No person ~~shall~~ may conduct, maintain, manage, or operate a funeral establishment unless a permit for ~~each~~
16 ~~such~~ the establishment has been issued by the Board. Violation of this subsection ~~shall constitute~~ is a grounds ground for
17 discipline. When a funeral service is held in a private residence, church, or lodge hall, no permit is required, provided that
18 the funeral director of record is operating from a firm with a funeral establishment permit.

SYNOPSIS

This Act clarifies the requirements regarding obtaining a permit to operate a funeral establishment.

Technical corrections are also made to existing statutory language to conform with the requirements of the Legislative Drafting Manual.